

SENATE No. 839

The Commonwealth of Massachusetts

PRESENTED BY:

Michael D. Brady

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to funding for nursing home staffing.

PETITION OF:

NAME:

Michael D. Brady

DISTRICT/ADDRESS:

Second Plymouth and Norfolk

SENATE No. 839

By Mr. Brady, a petition (accompanied by bill, Senate, No. 839) of Michael D. Brady for legislation to fund nursing home staff. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to funding for nursing home staffing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION ___. Chapter 118E of the General Laws, as appearing in the 2022 official
2 edition is hereby amended by inserting at the end thereof the following new sections:-

3 Section ___. In setting Medicaid rates for nursing homes licensed pursuant to section
4 seventy-one of chapter 111 of the general laws, the executive office of health and human services
5 shall annually adjust such payments with an inflation adjustment consistent with the annual
6 unadjusted Skilled Nursing Facility Market Basket Update, as established by the Centers for
7 Medicare & Medicaid Services in 42 C.F.R. § 413.337.

8 Section ___. Nursing homes licensed pursuant to section seventy-one of chapter 111 of the
9 general laws must have sufficient nursing staff with the appropriate competencies and skills sets
10 to provide nursing and related services to assure resident safety and attain or maintain the highest
11 practicable physical, mental, and psychosocial well-being of each resident, as determined by
12 resident assessments and individual plans of care and considering the number, acuity and

13 diagnoses of the facility's resident population in accordance with the facility assessment required
14 at 42 CFR 483.70(e). For the purpose of setting Medicaid rates for nursing homes licensed
15 pursuant to section seventy-one of chapter 111 of the general laws, the executive office of health
16 and human services shall recognize its full share of the actual nursing costs of meeting this
17 requirement.